

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

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SEBASTIAN DESORMEAUX,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALICIA COMMISSO (Tax Registration # 954660), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(Names and Numbers are Unknown at present) and
Other members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Queens County
as the place of venue

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 10, 2021

Respectfully submitted,

/s/ Sydney O'Hagan

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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
POLICE OFFICERS ALICIA COMMISSO (Tax Reg # 954660), 113th Precinct, Queens, New York.

SUPREME COURT OF THE STATE OF NEW YORK
QUEENS COUNTY

-----X
SEBASTIAN DESORMEAUX,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALICIA COMMISSO (Tax Registration # 954660), and
NYPD OFFICERS JOHN and JANE DOE #'s 1-12
(Names and Numbers are Unknown at present) and
Other members of the New York City Police Department,

Defendants.
-----X

Plaintiff **Sebastian Desormeaux**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Plaintiff was deprived of his federal constitutional common law rights when the individually named police officer defendants caused the malicious prosecution and denial of a fair trial of the plaintiff.

PARTIES

2. Sebastian Desormeaux is a citizen of the United States and a resident of New York.
3. NYPD OFFICER ALICIA COMMISSO (Tax Reg. # 954660) is and was at all times relevant herein officers, employees, and agents of the New York City Police Department.
4. NYPD OFFICER ALICIA COMMISSO (Tax Reg. # 954660) is being sued in his/her individual capacity and official capacity.

5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-12 are and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe #2-12 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

11. On November 14, 2017 at approximately 4:00 p.m., at 110-44 160th Street, Queens, New York, Plaintiff SEBASTIAN DESORMEAUX was arrested and charged with criminal possession of a forged instrument and criminal possession of forgery devices.
12. When defendant officers arrived at 110-44 160th Street, Plaintiff was inside his friend's home where he had arrived earlier that day for a visit. Plaintiff did not reside at that location, had never resided there, and exercised no dominion or control over it. After Plaintiff's arrival, Plaintiff's friend left the home to report to parole, expecting to return shortly thereafter. Plaintiff's friend returned in handcuffs and in custody of parole officers.
13. One of the officers told Plaintiff Desormeaux to leave the premises because his friend was under arrest. Plaintiff exited the home and went outside. He did not return home, though, because he was concerned for his friend's well-being. At this time, Plaintiff was not handcuffed and free to leave the premises.
14. Approximately 15 minutes later, defendant NYPD Officer Alicia Commisso and other NYPD John and Jane Doe officers arrived at the premises. Defendant officers exited their vehicle and entered the basement apartment where Plaintiff's friend was presumably still located.
15. A few moments later, defendant NYPD Officer Comisso and/or Jane or John Doe told Plaintiff to enter the home. When he arrived there, defendant officers stated to him "I heard you are on parole?" and immediately handcuffed him. The moment defendant officer demanded Plaintiff return to the home, he was not free to leave.
16. Defendant officers asked Plaintiff the name of his parole officer, which he willingly provided. They then proceeded to search Plaintiff and his person. The search revealed that Plaintiff was not

in possession of any illegal substances, weapons, contraband or forged instrument. Despite the lack of evidence of any wrongdoing, Plaintiff remained under arrest and was transported to the 113th Precinct.

17. Thereafter, Plaintiff was fingerprinted, photographed, questioned and confined against his will in a holding cell for several hours, and charged with multiple crimes by defendants COMMISSO and/or Jane and John Doe.
18. After being detained at the aforementioned precinct for several hours, plaintiff was transported to Central Booking where he was searched and further detained in holding cells for several hours.
19. Defendant officer COMMISSO and/or NYPD Officer John and/or Jane Doe had a conversation with the Assistant District attorney prior to Plaintiff's arraignment. During this conversation, defendant officers provided false or misleading information to the District Attorney regarding the circumstances of Plaintiff's arrest, including that Plaintiff exercised any dominion or control over the apartment where the allegedly forged credit cards were found.
20. During that same conversation, defendant officer COMMISSO and/or NYPD Officers John and/or Jane Doe provided false or misleading information regarding the location where Plaintiff's identification card prior to its seizure. The identification card was not found in a backpack, as the criminal complaint alleges; rather, it was removed from his wallet, which was on his person at the time of his arrest. The backpack referenced in the complaint did not belong to the defendant, did not have any of his belongings inside of it, and Plaintiff never told defendant officers that the backpack or any of its contents belonged to him. This information was either withheld from the District Attorney prior to Plaintiff's arraignment or misrepresented during that conversation.
21. During this conversation, defendant officers also failed to reveal exculpatory evidence to the District Attorney regarding Plaintiff's exercise of dominion and control over the evidence seized.

22. Defendant officers, including officer COMMISSO and/or Jane and John Doe testified before the Queens County Grand Jury. During their testimony, officers deliberately mislead the grand jury and withheld exculpatory evidence for the purpose of bolstering the charges against Plaintiff.
23. Upon information and belief, defendant officers, including officer COMMISSO, testified before the grand jury that Plaintiff's identification card was found inside a backpack when, in truth, it was recovered from inside his wallet that was on his person at the time of his arrest.
24. Upon information and belief, defendant officers, including officer COMMISSO, testified before the grand jury that Plaintiff claimed to use the backpack to store his toiletries when, in truth, Plaintiff never made that statement to any officer.
25. Upon information and belief defendant officers, including officer COMMISSO, testified before the grand jury that Plaintiff exercised some dominion or control over the apartment, knowing there was no objective evidence that he was anything other than a visitor to that location.
26. Upon information and belief, defendant officers, including officer COMMISSO, withheld exculpatory evidence from the grand jury by failing to inform them that when officers arrived at the scene, they told Plaintiff to leave the apartment because he did not reside there. Defendant officers also failed to inform the grand jury that when Plaintiff abided by this command and left the apartment, he failed to take the backpack with him, negating any inference that it belonged to him. Officer COMMISSO and other defendant officers also failed to inform the grand jury that when Plaintiff had the opportunity to leave the scene he remained nearby, indicating the absence of a guilty state of mind.
27. Defendant officers deliberately withheld truthful and exculpatory information from the grand jury for purposes of bolstering the charges against Plaintiff.

28. As a result of the foregoing, plaintiff SEBASTIAN DESORMEAUX was incarcerated for approximately one year and four months. He attended more than twenty court appearances.
29. Defendant Officer COMMISSO continued to mislead and fabricate evidence after the grand jury indictment and throughout the criminal proceedings.
30. All charges against Plaintiff SEBASTIAN DESORMEUX were dismissed and sealed on September 18, 2020.
31. During his time in custody, Plaintiff was sprayed with SABRE's MK-6 by Corrections Officers, causing severe pain and requiring medical treatment.
32. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CAUSE OF ACTION

MALICIOUS PROSECUTION

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
35. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
36. Defendants commenced and continued a criminal proceeding against plaintiff.
37. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
38. The prosecution and criminal proceedings terminated favorably to plaintiffs on September 18, 2020.
39. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.

40. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.
42. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
44. All of the aforementioned acts of defendants COMMISSO and/or POLICE OFFICERS JOHN and JANE DOE” #1-12, their agents, servants, and employees, were carried out under the color of state law.
45. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules

of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
50. Defendant COMMISSO provided false information to prosecutors in the Queens County District Attorney's Office – namely, defendant COMMISSO falsely informed prosecutors *inter alia*, that Plaintiff possessed forged credit cards when no such evidence existed.
51. Defendants CAMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 misled the prosecutors by telling them Plaintiff's identification card was found in a backpack, rather than on his person.
52. Defendants CAMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 further mislead the prosecutors by telling them Plaintiff claimed he used the backpack to store his toiletries, when no such statements was ever made. Defendants failed to inform prosecutors that they recovered no objective evidence indicating Plaintiff had a connection to the backpack. Defendant officers failed to provide this information because it undermined evidence indicating Plaintiff was merely a visitor in a home and had no dominion or authority over the home or the contents within it.

53. Defendants COMISSO failed to inform the grand jury of exculpatory evidence of Plaintiff's guilt including the true location of his identification, the lack of a guilty state of mind, and the lack of connection to the backpack.
54. By providing these misleading sworn statements, defendants COMMISSO and/or POLICE OFFICERS "JOHN DOE" #1-12 violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
55. As a result of the foregoing, plaintiff's liberty was restricted for a year and four months, he was put in fear for his safety, suffered physical harm while in custody, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
57. Defendants COMMISSO, POLICE OFFICERS "JOHN DOE" #1-12 misrepresented evidence before the Queens County District Attorney, including, but not limited to, claiming that Plaintiff's identification was found inside a backpack that he claimed to use for storage of toiletries.
58. Defendants COMMISSO and/or POLICE OFFICERS "JOHN DOE" #1-12 did not make a complete and full statement of facts to the District Attorney, including, but not limited to, Plaintiff's failing to exit the scene when given the opportunity to do so, revealing the absence of a guilty state of mind. Defendants also failed to inform the District Attorney that when Plaintiff exited the apartment on officers' orders, he did not attempt to take the backpack, or anything else

from the apartment, with him. This indicated the backpack did not belong to him and that he did not have custody or control over contents any contents of the apartment.

59. Defendants COMMISSO, and/or POLICE OFFICERS “JOHN DOE” #1-12 withheld exculpatory evidence from the District Attorney, including evidence that Plaintiff did not reside in the apartment, even temporarily.
60. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff as arresting officer and investigators in the case.
61. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 lacked probable cause to initiate criminal proceedings against plaintiff because they ignored objective evidence prior to Plaintiff’s arrest.
62. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 acted with malice in initiating criminal proceedings against plaintiff.
63. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff by provided sworn testimony in the grand jury.
64. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
65. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff because objective evidence in their possession negated probable cause for Plaintiff DESORMEAUX’S arrest.

66. Defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 misrepresented evidence throughout all phases of the criminal proceedings, including after indictment and through trial.
67. Specifically, defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 made false and misleading allegations regarding the circumstances surrounding plaintiff’s arrest, such as, but not limited to, the location of his identification card, his connection to the backpack where forged instruments were allegedly recovered, and indications that he resided in the apartment or controlled any of the contents within.
68. Notwithstanding the perjurious and fraudulent conduct of defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12, all charges against plaintiff were dismissed on September 18, 2020.
69. The actions of defendants COMMISSO and/or POLICE OFFICERS “JOHN DOE” #1-12 as described above, independently and collectively demonstrate that the prosecution against Plaintiff was undertaken for improper or wrongful motives – to bolster the officers’ version of events, and to resolve the incident without the need for further investigation. At a minimum, the actions of defendants clearly demonstrate a reckless disregard of the rights of Plaintiff. The abject lack of probable cause based on the information available to defendants at the time Plaintiff’s prosecution was initiated demonstrates further malice on the part of defendants.
70. As a result of the foregoing, plaintiff’s liberty was restricted for one year and four months, he was put in fear for his safety, suffered physical injury while in custody, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
73. The repeal of Civil Rights Law section 50-a has revealed the hundreds of thousands of complaints lodged against NYPD officers since the inception of the Civilian Complaint Review Board. The numbers of substantiated complains of NYPD officer police misconduct are proof that police officer's abuse of authority has become a custom and practice of the NYPD. According to CCRB, there have been more than 2,650 complaints against the 113th precinct. These complaints allege officers have committed various civil infractions and violations of individual's civil liberties.
74. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,

- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
75. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.
76. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
77. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.
78. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
79. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

80. The acts complained of deprived the plaintiffs of their rights:

- G. Not to be deprived of liberty without due process of law;
- H. To be free from seizure and arrest not based upon probable cause;
- I. Not to have summary punishment imposed upon them; and
- J. To receive equal protection under the law.

WHEREFORE, SEBASTIAN DESORMEAUX, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
December 10, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

POLICE OFFICERS ALICIA COMMISSO (Tax Reg # 954660), 113th Precinct, Queens, New York.

ATTORNEY'S VERIFICATION

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
December 10, 2021

Sydney O'Hagan /s/
Sydney O'Hagan, Esq.